

separate from the *minerals*, and the *minerals* separate from the *surface*, and such sales for the time past, where they have not been the subject of litigation, either concluded or pending, are confirmed.

[32. In the case of a sale by the tenant for life under the Settled Land Act, 1882, the sale may be made either of land with or without an exception or reservation of all or any of the mines and minerals therein, or of any mines and minerals, and in any such case with or without a grant or reservation of powers of working, wayleaves or rights of way, rights of water and drainage, and other powers, easements, rights and privileges for or incident to or connected with mining purposes, in relation to the settled land, or any other land (*c*). During the minority of the tenant for life, or person having the powers of a tenant for life, this power may be exercised by the persons who are trustees of the settlement for the purposes of the Act, if any, and if there are none then by such persons as the Court may direct (*d*).]

33. **Where the estate is settled the timber cannot be sold separately.**—If lands be devised to trustees in trust to sell for payment of debts, and, subject to that charge, are given to A. for life *without impeachment of waste*, with remainders over, the trustees must not raise the money by a sale of timber, which would be a hardship on the tenant for life, but by a sale of part of the estate itself; and should they have improperly resorted to a fall of timber, the tenant for life would have a charge upon the lands to the amount of the proceeds (*e*).

34. **Implied reconversion.**—If a fund be subject to the ordinary trusts of a marriage settlement, with a power of varying securities and of selling out *any part [*434] thereof and investing the proceeds on a *purchase of a freehold estate* to be held “upon such trusts as will best and nearest correspond with the trusts thereinbefore declared”

beneficiaries, they must be served;
Re Brown's Trust Estate, 9 Jur. N. S.
349; *Re Palmer's Will*, 13 L. R. Eq.
408.

[(*d*) 45 & 46 Vict. c. 38, s. 60; and
see *Re Duke of Newcastle's Estates*,
24 Ch. D. 129.]

(*e*) *Davies v. Wescombe*, 2 Sim.

[(*c*) 45 & 46 Vict. c. 38, s. 17.]

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